

4	CA-MRE Holdings, LLC vs. Sierra Creek, LLC	<u>Motion for Leave (re Third Amended Complaint)</u> No Tentative. The parties should however be prepared at the hearing to discuss the procedural history of this action, including the following: Over the last five+ years, Plaintiff has amended the complaint numerous times and trial has been continued numerous times. Specifically, Plaintiff CA-MRE HOLDINGS, LLC filed this action on 4/27/21. Plaintiff filed a First Amended Complaint on 9/1/21 and shortly thereafter, the original trial was scheduled for 9/12/22. After the court sustained a demurrer with leave to amend, Plaintiff filed a Second Amended Complaint on 3/14/22. Pursuant to Plaintiff’s Ex Parte Application (and due to a cross-complaint filed on 4/26/22), trial was continued to 3/10/23. Pursuant to stipulations, trial was thereafter continued to 3/11/24, and then to 10/14/24, and then to 7/7/25, and then to 12/8/25, and then to 4/20/26. When continuing the trial from 12/8/25 to 4/20/26, the court stated, “<u>No</u> further continuances”. (ROA 202.) Nonetheless, the court continued the trial yet again, to 8/31/26 based upon the stipulation of the parties and the court’s congested calendar. (ROA 248.) Trial is currently set for 8/31/26, the discovery deadline is quickly approaching, and Defendants have stipulated to continue the 5-year rule to 10/27/26. Now with trial quickly approaching (again) and despite that the action is more than five years old, Plaintiff seeks leave to file a Third Amended Complaint that would among other things, “add[] a direct breach of contract claim by CA-MRE against Sierra Creek, LLC for breach of a 2018 Assignment agreement (attached to the proposed TAC as Exhibit C); add[] an accounting claim; and revise[] the fraud claims.” (Not. of Mot, at p. 2, lines 8-16.)
5	Stern vs. Comdirect, Inc.	<u>Motion for Leave (re Cross Complaint)</u> The court GRANTS Defendants COMDIRECT, INC., ZACHARY LINDEN, and BLAKE BENJAMIN’S unopposed motion for